

on dowry, cruelty or harassment—nothing recognises live-in relationships,” says Rebecca John Mammen, a Delhi-based criminal lawyer. The whole presumption is that there has to be a valid marriage and the relationship must stem from that. “The only Central act, which goes beyond traditional relationships is the DVA, under which a live-in partner has equal rights as a wife and can claim shared residence, maintenance and compensation, protection against abuse.” But DVA just provides protection, “it does not give social and legal legitimacy to a live-in partner.” As a result, whereas divorce law entails a panoply of arrangements to protect children and determine alimony, when cohabiting couples split up there are few enforceable rights. “We need a law which recognises a live-in partner at par

ical emergency? “Perhaps the laws are deliberately ambiguous, so they can be interpreted more broadly,” points out Rajkotia.

Madhu Kishwar, firebrand feminist and the editor of *Manushi*, scoffs at the very idea of legal rights within such a relationship. “The very idea of cohabitation is that you don’t want commitments and responsibilities that come with marriage,” she asserts. “How can you expect social and legal bond to a relationship that by definition can be terminated at will? A woman must understand what she undertakes when she consents to live-in.” Legal rights to live-in relationships can also cut into marital rights. “What if a partner from a man’s past turns up and demands compensation?” Laws should be invoked only in case of violence or if there are children involved, she adds.

The debate obviously extends beyond to touch upon the integrity of marriage and family. But it’s much more to Menon: “The concern for gender justice may have persuaded the Government and the judiciary to look at the issue from a liberal angle, but it really represents the clash of individual rights vs community rights.” The resolution of the issue, for him, is more sociological and psychological than legal. “You have to envisage an Indian society with very few marriages and a majority of live-in relationships. How would it be in terms of social relations, control of violence, conflicts in child-rearing? This must be settled before we legislate.” For decades, laws in India have displayed an unwillingness to enter the private space between men and women. Not any more. But are we going too far by announcing rights within live-in relationships?

If marriage is not built on surprises, nor is cohabitation. Both are about sharing commitments, costs and chores. If in modern marriages, men and women try to renegotiate the terms of engagement, in live-in relationships all the frontiers have to be woven together (how will the household be maintained, who will manage the chores, is there a clear idea about each other’s financial obligations and goals, spending and saving patterns?). The added pressures in a live-in arrangement make it scary territory: societal gaze (do we tell the parents?) to personal choice (are we in it forever?). In a society where the institution of matrimony is changing, can we expect the laws to decipher newer terms of commitment? No wonder, lawmakers the world over hesitate to intrude into the private space between a pair. Raising the hammer may not be the best route to taming the bold and the brave.

with inputs from Purvi Malhotra in Delhi, Elora Sen in Kolkata and Swagata Sen in Bangalore

SUVASHISH MULLICK



RITUPARNA AND KAUSHIK, KOLKATA, ACTOR AND DIRECTOR, RESPECTIVELY. Have been in a relationship for five years and living together for over two years. They prefer living this way.

“A couple has more confidence in each other as there is really no binding. You are free to walk out.”

with a legally-wedded wife,” Mammen says.

But the black letter of law tends to avoid the grey zones of life where ambiguity, dilemmas, compromise and morality work. The Supreme Court considers only “long spells” of togetherness (30 years as cited), relationships that are socially accepted and where couples have joint legal documents. The DVA and the Maharashtra proposal are equally fuzzy on the duration of cohabitation. “What constitutes the relationship is also matter of proof,” points out lawyer Malavika Rajkotia, who specialises in women’s issues. Unanswered questions fly about: what does right to residence amount to when a relationship is abusive? What happens if the property is ancestral? Will a live-in partner have claims over insurance if the partner dies? Will she be allowed to give consent in a med-